
The Supreme Court Just Basically Held Up a “No Kings” Sign

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[Sign up for the Surge](#), the newsletter that covers most important political nonsense of the week, delivered to your inbox every Saturday.

Welcome to this week's edition of the Surge, a politics newsletter that is just saying—*just saying*—that the best Winter Olympics event would have been: You start in Milan. First one to Cortina wins. But no one asked us ...

Politics news, meanwhile, continued to happen this week. Early voting is underway in Texas, and some primary races are only getting more peculiar. President Donald Trump may bomb Iran again? Also: Aliens are real, and the Labor Department is in crisis.

Let's begin with a Supreme Court decision that was uncharacteristically rude and disrespectful to the Trump administration.

1.

John Roberts

A dagger to Trump's agenda.

The Supreme Court, in a 6–3 opinion authored by Chief Justice John Roberts, [struck down](#) most of Trump's tariffs on Friday, ruling that the law he was invoking could not be used for such a purpose. Trump had been claiming that the 1977 International Emergency Economic Powers Act gave him the emergency power to set tariffs on a whim, without the need for investigative findings or durational limits, for any particular reason that struck his fancy. This view undergirded certain tariffs against Mexico, Canada, and China, his global matrix of "reciprocal tariffs," and various threats he's made against, say, European countries that don't support his attempt to acquire Greenland. It was the stick he waved around the world to achieve his foreign policy aims, to show favor and disfavor, to offer or withhold exemptions to courtiers. Roberts' simple conclusion that "IEEPA does not authorize the President to impose tariffs" is more than a blow to his economic vision. It's a strike against the sweeping vision of the presidency he's built.

That's why Trump is so [darn mad about it](#) and, in a seething Friday afternoon press conference during which he said he was "ashamed" of the justices, announced he would use other powers to replicate the fallen tariff regime. Trump does have [additional tariff authorities](#) delegated to him by Congress, but they all have certain restraints. Some cap the duration of time they can be implemented, or cap the tariff rate he can set; others require departmental investigations or findings. None may meet that sweet, sweet high offered by the pretend authority he *thought* he had in IEEPA.

2.

James Talarico

Stephen Colbert enters the Democratic Senate primary in Texas.

On his broadcast Monday, CBS late-night host Stephen Colbert explained to his audience that he was supposed to air an interview with Texas Democratic Senate candidate James Talarico but had been told by his network's lawyers, "in no uncertain terms," that he couldn't do so. At issue was CBS's interpretation of [recent guidance](#) from Federal Communications Commission Chairman Brendan Carr stating that the FCC would reconsider an exemption of the "equal time" rule enjoyed by late-night and daytime talk shows. CBS, meanwhile, [said in a statement](#) that its lawyers didn't prohibit Colbert from airing the interview; they only advised the show that it could trigger an FCC complaint and "presented options for how the equal time for other candidates could be fulfilled." So Colbert instead posted the interview to YouTube, where there are no such "equal time" regulations. As of this writing, the interview is nearing 8 million views.

There are a lot of moving parts here, but after doing some calculations (Surge Math), this nets out to a meaningful contribution from CBS management to the Democratic Party's hopes of retaking Senate control. CBS got the willies over Carr's guidance (and his [apparently real investigation](#) of *The View*). Talarico, running in a close primary against Rep. Jasmine Crockett, [successfully parlayed that](#) into a narrative about how the administration had "censored" him, because it "doesn't want you to hear what James Talarico has to say." The ensuing uproar allowed him to raise millions of dollars overnight, giving him a boost against Crockett as early voting begins. It's no secret that the GOP [would prefer to run](#) against the more partisan, polarizing Crockett instead of Talarico, and CBS's actions made that at least somewhat less likely.

3.

Tony Gonzales

A dark turn in a tight primary.

Among the more competitive House primaries in Texas is a rematch between GOP Rep. Tony Gonzales and Brandon Herrera, aka "[the AK Guy](#)." In their 2024 contest, Gonzales—guilty of [occasional anti-MAGA heresies](#)—held off only Herrera, a challenger from Gonzales' right, by 400 votes in the primary runoff. The two are back at it again in a district that spans a broad swath of West Texas along the southern border.

Just as early voting began this week, though, a tragic story involving a former Gonzales staffer from last year has come back to the fore. A district-level aide for Gonzales, Regina Santos-Aviles, died by self-immolation at her home in September. Shortly after the incident last fall, the [Daily Mail reported](#) that Gonzales—a married father of six—had been having an affair with her. Gonzales denied it, but the rumor lingered. This week, another former Gonzales staffer released a text message from Santos-Aviles from last year, in [which she said](#) she'd had an affair with "our boss." Then, Santos-Aviles' husband said in an interview that he'd [caught wind of the affair](#) and confronted Gonzales about it, after which Gonzales "black-sheeped" his wife at work, sending her into a downward spiral.

Gonzales has had a range of defiant responses, from blaming the Herrera campaign from “using a disgruntled former staffer to smear her memory and score political points” [to accusing](#) the husband and his lawyers of blackmail. And *with that*, we’re going to throw our hands in the air and proceed to a new entry.

4.

Donald Trump

What kind of war on Iran are we looking at here?

Administrations used to have the decency to lie to the American people before leading them into a fresh war. A case had to be built. Now we just get wind that wars might happen a couple of days before they start. Although there have been reports for weeks that the administration was moving military assets toward the Middle East, it [set in only this week](#) that [Trump was gathering](#) the largest fleet of warships and air power in the region since 2003 (although still only a fraction of *that*). We’re just waiting on the USS *Gerald R. Ford* and its strike group to finish its hustle from the Caribbean to the Middle East for the president to have a full menu of options against Iran available to him.

If Iran and the U.S. don’t reach a deal over Iran’s nuclear program and whatever else is on the table, what does Trump want to do? Again, we really don’t *know*, and the administration has not offered to explain. It could be limited strikes to take out Iranian military assets left unbombed during [last summer’s 12-day attack on the country](#). Or Trump could go [Full Lindsey Graham](#) and try to kill the leaders of the Iranian regime, hoping that whoever replaces it is a more cooperative partner with the United States. It genuinely could come down to the advice of whoever he winds up playing golf with next.

5.

Barack Obama

Finally got him on charges of alien disclosure.

The former president did an interview with podcaster Brian Tyler Cohen this week in which he discussed any number of issues about the world and the political scene today, but the takeaway was: aliens. Cohen asked Barack Obama if aliens were real. “They’re real,” [he said](#), “but I haven’t seen them, and they’re not being kept in, what is it, Area 51. There’s no underground facility. Unless there’s this enormous conspiracy and they hid it from the president of the United States.”

We didn’t know it was still particularly surprising to hear someone say that aliens are “real”—we’ve all [seen the photos](#) of Mark Zuckerberg waterskiing—but this set off enough of a news frenzy that Obama was forced to post a clarification. “I was trying to stick with the spirit of the speed round, but since it’s gotten attention let me clarify,” he said. “Statistically, the universe is so vast that the odds

are good there's life out there. But the distances between solar systems are so great that the chances we've been visited by aliens is low, and I saw no evidence during my presidency that extraterrestrials have made contact with us. Really!" Someone seems nervous, and it's our assumption that alien colonies do live underwater and that James Cameron's *The Abyss* was a documentary. Trump, later in the week, effectively confirmed that aliens are real by saying that Obama had shared "classified information" and, later that night, instructed the government to begin releasing files related to aliens. In short, everything got out of hand quickly and weirdly, but such is life in America 250 years after its founding.

6.

Bill Ferguson

Will Maryland be Democrats' Indiana in the redistricting wars?

Not all states are pliant to national party pressure to maximize partisan gerrymandering efforts in the midcycle redistricting wars. National Republicans, memorably, put the full weight of congressional and presidential pressure on Indiana legislators to squeeze out another GOP seat or two in the state, only [to be rejected](#) in a state Senate vote late last year. Now it's Democrats facing a similar situation in Maryland. The state's current delegation is seven Democrats to one Republican, and that one Republican is the very, very safely seated Rep. Andy Harris, chair of the House Freedom Caucus. National Democratic leaders and Maryland Gov. Wes Moore want to create an 8–0 map for Democrats, and such a map has already passed out of the state's House of Delegates.

The Maryland Senate, however, isn't acting. As it happens, the [Surge reported on](#) the *previous* time national Democrats pressured Maryland legislators to wipe Harris off the map, five years ago, and the figure of resistance now is the same as then: state Senate President Bill Ferguson. [Ferguson's practical fear](#) is that state courts would reject an 8–0 Democratic map and possibly implement one that's worse for Democrats than the current 7–1 map. (If you're a Maryland law sicko and want to read Rep. Jamie Raskin's lengthy response to this argument, [have at it](#).) So immovable is Ferguson that House Democratic Leader Hakeem Jeffries went to Annapolis this week to meet with him. The visit [did not appear](#) to make a difference. "Bill Ferguson authentically believes that the votes don't exist in the State Senate to move forward," Jeffries said in a statement afterward. "The only way to find out is to allow an immediate up-or-down vote on the Senate floor."

7.

Lori Chavez-DeRemer

What is going on at the Labor Department?

We believe that this is the labor secretary's first appearance in the Surge, and, regrettably, it's not to commend her on great achievements in the field of labor. Last month, the [New York Times](#)

[reported](#) that a member of her security team with whom she'd been accused of having a "romantic relationship" had been placed on leave during a misconduct investigation. There are also separate complaints, requiring separate aides to be placed on leave, accusing Lori Chavez-DeRemer of other forms of mismanagement.

This week, we learned that problems at the DOL encompass the other half of Chavez-DeRemer's marriage as well. The secretary's husband, Shawn DeRemer, has been barred from the department's headquarters amid complaints from "at least two female staff members" who said that he had sexually assaulted them. (DeRemer [denies the allegations](#).) D.C. police are investigating it. According to the Times, [there is video](#) of at least one incident that shows "Dr. DeRemer giving one of the women an extended embrace." The Surge is skeptical the DeRemers are long for service in Trump's Washington.

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